133 Proposition 133: Penalties for Human Trafficking of a Minor

Placed on the ballot by citizen initiative • Passes with a majority vote

Ballot Title

Shall there be a change to the Colorado Revised Statutes modifying existing law concerning human trafficking of a minor for sexual servitude, and, in connection therewith, creating new law expanding human trafficking of a minor for sexual servitude to include knowingly trading anything of monetary value to buy or sell sexual activity with a minor and increasing the penalty to be life in prison without parole or release?

What Your Vote Means

YES A "yes" vote on Proposition 133 increases the penalties for child sex trafficking to life in prison without parole, and expands child sex trafficking to include buying sexual activity with a minor.

NO A "no" vote on Proposition 133 keeps the existing felony criminal penalties for child sex trafficking with a sentencing range of 8 to 48 years in prison plus a mandatory parole period.

134 Proposition 134: Male and Female Participation in School and Collegiate Sports

Placed on the ballot by citizen initiative • Passes with a majority vote

Ballot Title

Shall there be a change to the Colorado Revised Statutes creating new law restricting participation in all K-12 and collegiate school sports based on the participant's sex as determined by certain aspects of their biological reproductive system, and, in connection therewith, requiring a school, institution of higher education, or athletic association to designate each school or intramural athletic team or sport as male, female, or coeducational; only allowing participants to compete on the team or sport of their designated sex or to compete on a coeducational team; creating an exception to allow a female to participate on a male-designated team or sport if there is no female team available; prohibiting a government entity, licensing or accrediting organization, or athletic association from entertaining a complaint, opening an investigation, or taking other adverse action against a school for maintaining separate teams or sports for females; and providing the commissioner of education with the authority to enforce the proposed initiative for K-12 school districts?

What Your Vote Means

YES A "yes" vote on Proposition 134 means that all school-based athletic teams and sports must be designated as being for biological males or biological females only, or as mixed, and requires schools and school districts to adopt policies on sex eligibility for sports.

NO A "no" vote on Proposition 134 means that individual schools, school districts, and athletic associations may continue to set their own policies in alignment with current state and federal law about who is eligible to participate on a team or in a sport.

133 Proposition 133: Penalties for Human Trafficking of a Minor

Placed on the ballot by citizen initiative • Passes with a majority vote

Proposition 133 proposes amending the Colorado statutes to:

- mandate a sentence of life in prison without parole for child sex trafficking convictions; and
- expand child sex trafficking to include buying sexual activity with a minor.

What Your Vote Means

YES A "yes" vote on Proposition 133 increases the penalties for child sex trafficking to life in prison without parole, and expands child sex trafficking to include buying sexual activity with a minor.

NO A "no" vote on Proposition 133 keeps the existing felony criminal penalties for child sex trafficking with a sentencing range of 8 to 48 years in prison plus a mandatory parole period.

Summary and Analysis of Proposition 133

What is child sex trafficking?

Under Colorado law, human trafficking of a minor for sexual servitude, or child sex trafficking, occurs when an adult forces or makes a minor available for commercial sexual activity in exchange for money or other compensation. Child sex trafficking is one of many sex crimes with which a buyer or seller may be charged. Legally, a minor cannot consent to commercial sexual activity. Current law provides legal defenses and protections for individuals charged with this crime who are victims of sex trafficking.

How does Proposition 133 change the crime of child sex trafficking?

Proposition 133 increases the penalty for child sex trafficking to life in prison without the possibility of parole, and removes judicial discretion in sentencing. It also adds exchanging anything of value to buy or sell sexual activity to the list of acts included in child sex trafficking. If convicted of this crime, buyers and sellers will receive a life sentence.

Table 1 outlines the current penalties for those convicted of child sex trafficking and the penalties if Proposition 133 is approved. The table reflects the range of potential penalties under current law, but the actual sentence would depend on the specifics of the crime and the outcome of the trial.

Table 1
Current and Proposed Penalties for Child Sex Trafficking

Policy	Felony Classification	Penalties
Current Law	Class 2 felony	8 to 48 years in prison and mandatory 5 years parole
Proposition 133	Class 1 felony	Life in prison without parole

Argument For Proposition 133

1) Child sex trafficking causes serious and long-lasting harm to victims. Someone who commits this terrible crime deserves a life sentence instead of a shorter prison term or probation. The punishment outlined in the measure is clear, definite, and ensures that offenders cannot hurt more children. With this change, victims will have no doubt that child sex trafficking offenders are punished to the fullest extent of the law. The measure helps deter people from engaging in child sex trafficking and sends a strong message that Colorado takes these crimes seriously. Proposition 133 makes certain that justice is served, children are protected, and victims are shielded from punishment and further harm.

Argument Against Proposition 133

1) Harsher sentences are unlikely to deter human trafficking, but may instead result in punishing victims. Many victims of child sex trafficking are pressured or forced to commit crimes to help traffickers. Due to the fear of a life sentence, victims may be less likely to report these crimes or cooperate with police. Additionally, a judge would no longer be able to consider the facts of the case when sentencing someone convicted of child sex trafficking. The measure prioritizes punishment over prevention, and redirects resources from other strategies that combat child sex trafficking. Proposition 133 is unlikely to stop child sex trafficking or protect victims.

Information about the organizations supporting and opposing this measure is available on the Colorado Secretary of State's website:

www.coloradosos.gov/pubs/elections/Initiatives/ballot/contacts/2026.html

Fiscal Impact of Proposition 133

State Spending

The measure increases future state spending in the Colorado Department of Corrections (CDOC). Costs for the measure are estimated to begin in about 14 years. Initial costs are estimated at $180,000 in budget year 2041-42, and grow by that amount for several years thereafter. This would be an increase of $360,000 in budget year 2042-43, $540,000 in budget year 2043-44, and so on. These costs are not

adjusted for inflation. Eventually, the increase will stabilize as the costs of new offenders staying longer are offset by a decrease in costs from life sentences ending due to an offender dying or potentially receiving a commutation or pardon.

The cost increase results from persons convicted of child sex trafficking serving a life sentence instead of a fixed term. It takes years for the first affected offenders to reach the point in their original sentence where they would have been paroled under current law, and that is when the added cost starts. This cost estimate reflects current sentencing data and values for state-run prison beds; actual costs will likely be higher in the future due to inflation, and if more individuals are convicted of child sex trafficking than under current law. Notably, costs for medical care will grow separately as offenders age in prison.

In addition, workload in the trial courts and agencies that provide representation to indigent offenders in the Judicial Department will minimally increase as cases with enhanced penalties generally take longer to process than cases with lesser penalties.

The measure does not specify a funding source to pay for the increased spending in the CDOC and it is assumed that these costs will be paid from the state General Fund. While the measure may reduce money available for other uses (the three largest of which are Health Care Policy and Financing, Education, and Higher Education), the likely effect of the measure on other programs is unknown and will depend on future budgeting decisions by the state legislature.

Local Government Spending

Similar to the state, workload will minimally increase for county-funded district attorneys to prosecute longer cases with enhanced penalties.

Proposition 133
Penalties for Human Trafficking of a Minor

The ballot title below is a summary drafted by the professional staff of the offices of the secretary of state, the attorney general, and the legal staff for the general assembly for ballot purposes only. The ballot title will not appear in the Colorado Revised Statutes. The text of the measure that will appear in the Colorado Revised Statutes below was drafted by the proponents of the initiative. The initiated measure is included on the ballot as a proposed change to current law because the proponents gathered the required amount of petition signatures.

Ballot Title:
Shall there be a change to the Colorado Revised Statutes modifying existing law concerning human trafficking of a minor for sexual servitude, and, in connection therewith, creating new law expanding human trafficking of a minor for sexual servitude to include knowingly trading anything of monetary value to buy or sell sexual activity with a minor and increasing the penalty to be life in prison without parole or release?

Text of Measure:
Be it enacted by the people of the State of Colorado
SECTION 1. Legislative Declaration. (1) The people of the State of Colorado hereby find and declare:
(a) Residents of Colorado and other states and territories throughout the United States have seen an alarming increase in human trafficking, especially human trafficking involving minor children;
(b) Current penalties in Colorado law with parole possible in as little as eight years have failed to adequately deter the human trafficking of minor children; and
(c) It is the measure of a fair and compassionate society to ensure that children are not for sale.
SECTION 2. In Colorado Revised Statutes, 18-3-504, **amend** (2)(a) and (2)(b); and **add** (5) and (6) as follows:
18-3-504. Human trafficking for sexual servitude - human trafficking of a minor for sexual servitude.
(2) (a) A person commits human trafficking of a minor for sexual servitude if the person:
(I) Knowingly sells, recruits, harbors, transports, transfers, isolates, entices, provides, receives, obtains by any means, maintains, or makes available a minor for the purpose of commercial sexual activity; ~~or~~
(II) Knowingly advertises, offers to sell, or sells travel services that facilitate an activity prohibited pursuant to subsection (2)(a)(I) of this section; OR
(III) KNOWINGLY TRADES ANYTHING OF MONETARY VALUE TO BUY OR SELL SEXUAL ACTIVITY WITH A MINOR.
(b) Human trafficking of a minor for sexual servitude is a class ~~2~~ 1 felony. The court shall sentence a person convicted of such a class ~~2~~ 1 felony to the department of corrections for a term of ~~at least the minimum of the presumptive range for a class 2 felony,~~ LIFE IN PRISON WITHOUT PAROLE OR RELEASE, as set forth in section 18-1.3-401.
(5) NOTHING IN THIS SECTION SHALL LIMIT A GOVERNOR'S STANDING AUTHORITY OF PARDON, COMMUTATION, OR CLEMENCY.
(6) THE SHORT TITLE OF THIS SECTION IS THE "CHILDREN ARE NOT FOR SALE ACT."
SECTION 3. Effective date -- applicability. This act takes effect on January 1, 2027, and applies to offenses committed on or after that date.

Proposition 134
Male and Female Participation in School and Collegiate Sports

The ballot title below is a summary drafted by the professional staff of the offices of the secretary of state, the attorney general, and the legal staff for the general assembly for ballot purposes only. The ballot title will not appear in the Colorado Revised Statutes. The text of the measure that will appear in the Colorado Revised Statutes below was drafted by the proponents of the initiative. The initiated measure is included on the ballot as a proposed change to current law because the proponents gathered the required amount of petition signatures.

Ballot Title:
Shall there be a change to the Colorado Revised Statutes creating new law restricting participation in all K-12 and collegiate school sports based on the participant's sex as determined by certain aspects of their biological reproductive system, and, in connection therewith, requiring a school, institution of higher education, or athletic association to designate each school or intramural athletic team or sport as male, female, or coeducational; only allowing participants to compete on the team or sport of their designated sex or to compete on a coeducational team; creating an exception to allow a female to participate on a male-designated team or sport if there is no female team available; prohibiting a government entity, licensing or accrediting organization, or athletic association from entertaining a complaint, opening an investigation, or taking other adverse action against a school for maintaining separate teams or sports for females; and providing the commissioner of education with the authority to enforce the proposed initiative for K-12 school districts?